

Amendment No. 1 to SB0124

White
Signature of Sponsor

AMEND Senate Bill No. 124

House Bill No. 81*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 49-6-3001(c)(1), is amended by deleting all language after the first sentence, designating subdivision (c)(1) as subdivision (c)(1)(A), and adding the following as a new subdivision:

(B)

(i) If a student transfers from one (1) school to another school in the same LEA, then the LEA shall provide a copy of the student's records, including the student's academic, disciplinary, behavioral, and special education records, to the school to which the student transfers within five (5) business days of the date on which the student's records request was received by the school. If a student transfers from one (1) LEA to another LEA, then the LEA from which a student transfers shall provide a copy of the student's records, including the student's academic, disciplinary, behavioral, and special education records, to the LEA to which the student transfers within five (5) business days of the date on which the student's records request was received by the LEA.

(ii) If an LEA or school provides a copy of a student's records to an LEA or school to which the student has expressed an intent to transfer but does not transfer, then the LEA or school that received the copy of the student's records shall notify the LEA or school from which such records were provided that the student did not enroll in the LEA or school within five (5) business days of the date on which the LEA or school received the records.

(iii) An LEA or school that provides or receives student records pursuant to this subdivision (c)(1)(B) must do so in compliance with the Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g).

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.